COMMONWEALTH OF PENNSYLVANIA
COURT OF JUDICIAL DISCIPLINE

No. 2 JD 2019

IN RE:
Lyris F. Younge
Court of Common Pleas, First Judicial District, Philadelphia County

PETITION FOR RELIEF FOR INTERIM SUSPENSION WITH OR WITHOUT PAY

Richard W. Long, Chief Counsel
Elizabeth A. Flaherty, Deputy Counsel
Pa. Supreme Court ID No. 205575
Judicial Conduct Board
Pennsylvania Judicial Center
601 Commonwealth Avenue, Suite 3500
P.O. Box 62525
Harrisburg, PA 17106

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AND NOW, this 20th day of August, 2019, comes the Judicial Conduct Board of the Commonwealth of Pennsylvania (Board), by and through Richard W. Long, Chief Counsel, and Elizabeth A. Flaherty, Deputy Counsel, and files this Petition for Relief For Interim Suspension With or Without Pay pursuant to Article V, § 18(d)(2) of the Pennsylvania Constitution, Rule 701 of the Court of Judicial Discipline Rules of Procedure, and Rule 13(A) of the Judicial Conduct Board Rules of Procedure and in support thereof, avers the following:

1. The Pennsylvania Constitution at Article V, § 18(d)(2) provides this Court with the authority to impose interim suspension as follows:

> Prior to a hearing, the court may issue an interim order directing suspension, with or without pay, of any justice, judge or justice of the peace against whom formal charges have been filed with the court by the board or against whom has been filed an indictment or information charging a felony. An interim order under this paragraph shall not be considered a final order from which an appeal may be taken.

PA. CONST art. V, § 18(d)(2).

2. From approximately January 4, 2016 until the present time, Judge Younge has served as Judge of the Court of Common Pleas of the First Judicial District, Philadelphia County, Pennsylvania.

3. Contemporaneously with the filing of this Petition, Board Counsel is filing a Board Complaint against Judge Younge, alleging ten counts of judicial misconduct. A copy of the Board Complaint is attached hereto, made a part hereof and incorporated herein by reference as though set forth in full. See Attachment "A" (Board Complaint).

4. The allegations contained within the Board Complaint against Judge Younge undermine both public confidence in the judiciary and the reputation of the judiciary. If Judge Younge is permitted to continue to perform any judicial duties during the pendency of the Board Complaint, the public's confidence in the judiciary will continue to erode.

WHEREFORE, it is respectfully requested that this Honorable Court enter an interim order suspending Judge Younge, either with or without pay, pending disposition of the Board Complaint filed against her and to grant such other relief as may be deemed appropriate.

August 20, 2019

/s/ *Richard W. Long*
Richard W. Long
Chief Counsel
BY: Elizabeth A. Flaherty, Deputy Counsel
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CERTIFICATE OF COMPLIANCE

I certify that this filing complies with the provisions of the Case Records Public Access Policy of the Unified Judicial System of Pennsylvania that require filing confidential information and documents differently than non-confidential information and documents.

/s/ *Richard W. Long*
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